COMMENTS ON DIFFICULTIES/ISSUES DURING THE ADOPTION OF THE LABOR CODE 2012 AND RELEVANT GUIDANCE DOCUMENTS

Selected items （17 Se p ,2016） JBAV

No.	Articles	Contents	Problem	Proposal
			Wage and Allowance	
8	Article 141- Labor Code 2012: In-kind allowances Article 24- OSH Law	Employees working in dangerous and hazardous conditions are entitled to in-kind allowances provided by employers according to regulations of the Ministry of Labor, War Invalids and Social Affairs.	The in-kind allowances for employees working in dangerous and hazardous conditions is unnecessary and not have the real meaning because the following reason: + It has not meaning in protecting the health for employee, cannot fully solve the problem on working environment. + The employers is obligated to improve the working conditions for employee to reduce the heavy, harmful, dangerous factors to make better working conditions for employees. + The working time of employee working this kind of job is reduced to balance with other jobs and to ensure time for health recovery. + Conducting in-kind allowances is so complicated in management, harm the fairness among employee,especially, with enterprise having number of large employees.	Review remove this provision
10	Article74, OSH Law	safety and sanitation worker/a production group -Safety and sanitation worker working under management and guidance of TU Voted by employees Employers issue Decision on establishment of safety & sanitation worker network and its operating regulations. Right of OSH staff : + Spend time to do tasks of safety and sanitation worker; + Get paid for time doing tasks; + Get responsibility allowance	There is no unification about regulations related to operation of SSW: + TU manages and guide +Enterprise establishes and issues operation regulations	Should change: +"Safety and sanitation worker works under management and guidance of enterprise's OSH staff or dept" + TU will support and cooperate +Remove "responsibility allowance" Reasons: + employers pay SSW salary to do assigned job + employers still allow to spend working time on OSH job + If this job is under the cotrol of employer, it's unnecessary to pay allowance. That harms the balance of payment system. Ex)Paying allowance for SSW, on the other hand NO allowance for IT person in charge.>>harm balance Responsibility allowance should be decided by company, not by law.

<table>
<tr><td colspan="5">Working Environment</td></tr>
<tr><td>1</td><td>Clause 1, Article 6, Decree 85/2015/NĐ-CP - Bathroom at enterprise</td><td>Employer ensures enough number of proper bathroom, toilet at working place as regulation of Ministry of Health.
保健省の規定に基づき職場に適切な数のバスルームとトイレを設置すること</td><td>- Not neccessary and infeasible as for office job, light industries ... female employees no need to take the bath at Company. Arrange bathroom while employees do not use cause wasting and cost up for enterprise.
- This standard also not clear: for enterprises > 600 labors will not know how many bathroom are suitble</td><td>+ Regulate applicable subject for obligation of ensuring enough bathroom for enterprises which using labor in the specific fields need to use bathroom only
+ For other industries, depends on the condition of enterprises and demand of employees.</td></tr>
<tr><td rowspan="2">2</td><td rowspan="2">Art 37 - Decree 39/2016/ND-CP about medical care at establishment</td><td>Clause 2, Art. 37:
'Clause 1:
b) The business and production establishments which employ between 300 and 500 people must have at least 01 doctor/physician and 01 person to carry out the medical activities with intermediate educational level.
c) The establishment using more than 1000 employees shall have 01 doctors and 01other health officer;
In case lack of qualified health officer, employer can contract with the local medical center to satisfy on-site healthcare.</td><td>□ This regulation is complicated because:
+ Basically, the medical division at enterprise is only liable of initial healthcare and first-aids. Other more serious cases will be transferred to hospitals for timely treatment.
+ All employees already pay Health insurance for health care at all level
--> unnecessary and costly</td><td rowspan="2">It's unreasonable to apply uniformly.
Government should specify the suitable requirement and number of medical staff based on every job field and company size.
Remove the requiremant for having doctor/physician at eatablishment.</td></tr>
<tr><td>Clause 3. Art. 37:
The persons performing the medical activities at the establishments must meet all the following conditions:
- Have medical qualifications including: doctor, doctor of preventive medicine, bachelor of nursing, physician, intermediate-level nurse and midwife;
- Have Occupational Health Certificate.</td><td>This regulation is unnecessary and too complicate. It's also difficult to implement in actual because occupational heath still belong to general medical.</td></tr>
<tr><td>4</td><td>CIR 24/2016/TT-BYT NATIONAL TECHNICAL REGULATION ON NOISE - PERMISSIBLE EXPOSURE LEVELS OF NOISE IN THE WORKPLACE</td><td>1. The permitted levels of an employee's exposure to noise in the workplace shall not exceed the limit values described in the Table 1.
<table><tr><th>Noise exposure time</th><th>Equivalent permissible sound pressure levels (L_{Aeq}) - dBA</th></tr><tr><td>8 hours</td><td>85</td></tr><tr><td>4 hours</td><td>88</td></tr><tr><td>2 hours</td><td>91</td></tr><tr><td>1 hour</td><td>94</td></tr><tr><td>30 minutes</td><td>97</td></tr><tr><td>15 minutes</td><td>100</td></tr><tr><td>7 minutes</td><td>103</td></tr><tr><td>3 minutes</td><td>106</td></tr><tr><td>2 minutes</td><td>109</td></tr><tr><td>1 minute</td><td>112</td></tr><tr><td>30 seconds</td><td>115</td></tr></table>In every point of time when employees are at work, the maximum sound pressure level does not exceed 115 dBA.</td><td>Not have standard unit calculating for "noise exposure time". For example: standard unit may be a day or a week or a month.
The minimum exposure limitation is too strictly</td><td>+ Keep the same exposure time as Standard 3733/2002/QĐ-BYT for unifying application of employers.
+ Review to recalculate permissible limits. In which, we have to consider some important factors: kind of noisy, equipment anti noisy and other environment factors such as working intensity, working space, etc.
Decision 3733/2002/QD-BYT
<table><tr><th>Time exposure to noise in 1 day</th><th>The average noise intensity permitted maximum</th></tr><tr><td>8 hours</td><td>85 dbA</td></tr><tr><td>4 hours</td><td>90 dBA</td></tr><tr><td>2 hours</td><td>95 dBA</td></tr><tr><td>1 hours</td><td>100 dBA</td></tr><tr><td>30 minutes</td><td>105 dBA</td></tr><tr><td>15 minutes</td><td>110 dBA</td></tr><tr><td><15 minutes</td><td>115 dBA</td></tr></table></td></tr>
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5	Circular 36/2012/TT-BLĐTBXH	List of arduous, harmful, and dangerous works and extremely arduous, harmful, and dangerous works in the K Category (MC and Car Manufacturing)	List of arduous, harmful, and dangerous works and extremely arduous, harmful, and dangerous works in the K Category is not completed. For example, we propose more Level IV jobs such as: Dipping paint in motorcycle manufacture line, Dry Spraying and Dust Spraying in motorcycle manufacture line.	Please conduct the survey and update again the list in accordance with actual jobs of the direct workers.
6	13/2016/TT-BLĐTBXH List of jobs have strict requirements on labor safety	APPENDIX LIST OF THE STRICT REQUIREMENTS OF SAFETY AND SANITATION WORKERS Section 5. Installation, commissioning, repair, maintenance, cleaning and grinding machines, saws, milling machines, planers, lathes, bending, cut, cut, ripped tight, punching, punching and beating, shaping, feeding, whether, crushing, grinding, mixing, rolling, centrifugation, drying, screening, sorting, pressing, luck, bending, coated, rolled, peeled, packing, polishing, carousel, conveyors, water guns, compressed air guns; Industrial printers	The classification of job categories require strict OSH in Section 5 of Appendix issued together with Circular 13/2016 / TT-MOLISA unclear so the understanding between authorities and enterprises is different.	Need to clarify specific criteria in paragraph 5 of this machine for now groundless judgment and easily applied in practice. For example, the press has been regarded as the device has strict requirements on labor safety and hygiene. Parameters such as how much power output ton stamping machine how much it Kg input pneumatic, or put to any kind of material, applied with the press in heavy industrial use should be clearly defined .
		OSH training		
1	Clause 2, Article 30- Decree 48/2015/NĐ-CP: Condition of trainer in enterprise	Item (c), clause 2, Article 30 prescribes trainers in enterprises are educators or scientists, engineers, technical officials, craftsmen, skilled workers, good farmers **having pedagogy (teaching) certificates** suitable for the programs they teach	-This regulation causes difficulties to training activities of enterprises because there are also many other trainers who aren't mentioned in this Decree now taking part in trainings, and if trainings are not carried out, enterprises couldn't operate. '- Granting certificates in pedagogy for trainers in enterprises is impossible to realized because: '+Number of trainers in enterprise is large: each trainer can only tutor 1-3 persons, so with large number of trainees the number of trainers is big as a result. '+ In fact, almost trainers work for enterprises, have experiences and deep understandings about work and already train labor for long time, so they eventually can meet the requirements in term of professional knowledge and teaching skills.	Remove this provision

2	Article 14 of the Law on OSH : Training OSH at establishment	+Allow the employer to organize the training , guidance and regulations , rules , procedures and measures to ensure occupational safety and health for certain groups of employees. +In case that enterprise conduct training for these objects, enterprise must meet the conditions of activities such as one of OSH training center	-Regulating that enterprise must meet same conditions as conditions of OSH training center that currently stipulated in Circular 27/2013 / TT - MOLISA is very strict. In particular, conditions of trainer are completely unfeasible in practice -Can not ensure " consistent with the characteristics and nature of each profession , job title , employee size , and not difficult to operate manufacturing and trading " as provisions in Clause 5 of this Article	Issuing documents guiding the conditions of self- organization of the business conducting OSH training towards advantage for enterprise and feasible in practice + Allow enterprises make plan on training time , training content ... consistent with the production and business situation and the particular job and machines in enterprise. + Trainer requirements : have at least 3 years experience in the field of training
3	**Art 19- DECREE 44/2016 GUIDING SOME ARTICLES OF OSH LAW ON OSH TRAINING : Training duration**	. The first minimum training time is provided for as follows: 1. Group 1 and Group 4: ≥16 hours, including the testing time. 2. Group 2: ≥ 48 hours, including the training time of theory, practice and testing time. 3. Group 3: ≥ 24 hours, including the testing time. 4. Group 5: 56 hours, including the testing time in which the training time for issue of Certificate of professional occupational health ≥ 40 hours; the content of training for issue of Certificate of OSH is ≥16 hours. 5. Group 6: ≥ 4 hours in addition to the training time of OSH	Training duration of Group 1 & 2 is similar to Cir 27: Add more regulation on training duration of group 3,5, 6 '--> training duration is still long	- The training duration should based on operation field of enterpises --> for enterpise operating on light industry --> should allow enterpise to decide training duration and report to labor management state agency.
4	**Art 29 -Art 19- DECREE 44/2016 Enterprises organizing the training of occupational safety and sanitation by themselves**	1. The employers must organize the training and take responsibility for the training quality for their employees of group 4 according to one of the following forms: a) Organize the training themselves if ensuring the conditions about the trainer as stipulated by this Decree. b) Hire the training organization. 2. Order to review and assess the operational conditions of enterprises which organize by themselves the training of occupational safety and sanitation as follows: a) The enterprises wishing to organize by themselves the training of occupational safety and sanitation should prepare a dossier to evidence their eligibility for operation as like the training Organization, except for the conditions specified under Point a, Clause 2, Article 36 of this Decree and send it to the competent authorities specified in Article 27 of this Decree	Regulating that enterprise must meet operation conditions which is similar to training center is greatly strict	The condition to organize OSH training by themselves is too strict to implement. It's unreasonable to apply uniformly. Government should specify the suitable conditions based on every job field

		b) Within 30 days after receiving all valid dossier, the competent authorities shall review and inform the enterprises of unsatisfactory conditions according to regulations. If the time limit of 30 days is over but the competent authorities do not have any announcement of enterprise's ineligibility for training activities, the enterprise is permitted to carry out the training within the requested scope. c) After 5 years from the date of assessment of eligibility for self-training, the enterprise shall send dossier to the competent authorities for review and assessment again of operational conditions if it needs further self-training except for the conditions specified under Point a, Clause 2, Article 36 of this Decree and send it to the competent authorities specified in Article 27 of this Decree.		
5	**Art 21DECREE 44/2016: Updating OSH knowledge & periodical training**	**Group 1, 2 ,6** -Review & update OSH knowledge & skills ≥ once for every 02 years from the effective date of the training Certificate and safety Card. The training time is ≥ 50% of the first training time. -Healthcare workers (Group 5) must update the knowledge by participating in meetings, conferences and transactions with local health authorities or central health authorities under work assignment of the employer. (Point c, Paragraph 3, Article 73- OSH Law Group 4 ≥ 50% of the first training time. a) Change of work or equipment or technology: Before work assignment, the employee must be trained about OSH in line with the new job or new equipment or technology. Where subjects have been trained in ≤12 months from the time of performing the new job or upon change of equipment and technology, the content of retraining is exempted from the contents which ware trained. b) Return to work after the time of job leave. The establishment stops operating or the employee leaves his work more than 06 months and when returning to work, the employee shall be trained with the contents like the first training. The re-training time is equal to 50% of the first training time.	--> complicated and difficult for enterprise to conduct.	Employees are trained daily via working --> should allow enterprise to self-control training in this case

6	**Art 22DECREE 44/2016: Conditions on trainer**	Training of content of system of OSH law: ≥ university degree & have ≥ 5 years working as the developer of policies, laws, management and inspection over OSH at the bodies having functions and duties directly related to OSH; Training of professional content of OSH & content of basic knowledge about OSH: ≥ university degree in technology & one of: a) ≥ 5 years working as the developer of policies, laws, management & inspection over OSH at the bodies having functions and duties directly related to OSH b) ≥ 07 years performing work of OSH at the non-business units and enterprises & must participate in the course of profession and techniques of training.	Requirement about education level & no. year of lecturer's working experience is too tough for lecturer working in non-state enterprises --> impossible for enterprise Experience is precious than education and enterprise in light industry is not dangerous as heavy industry	It's too strict for enterprise in light industry --> only regulate requirement on 3years of experience
		Specialized theory training The trainer of specialized theory must have university degree or higher educational level in line with the training specialty and meet one of the following standards: a) ≥ 5 years working as the developer of policies, laws, management and inspection over OSH at the bodies having functions and duties directly related to the occupational safety and sanitation. b) ≥ 5 years performing work with strict requirements on OSH & must participate in the course of profession and techniques of training.		
		Practice training: a) Group 2 practice training: ≥ college degree in line with the training specialty and have proficiency with machine, equipment, chemical and work with practice application based on the training frame program; b) Group 3 practice training: ≥ intermediate in line with the training specialty; ≥ 05 years performing work with strict requirements on OSH or work related to the OSH at the establishments in line with the training work. c) Group 4 practice training: ≥ technical intermediate level in line with the training specialty or have the time of actual working time of ≥ 05 years d) Practice training of occupational first aid and emergency:≥ college degree of medicine specialty or and ≥ 03 years of experience directly participating in first aid and emergency or have doctor level; dd) The practice trainer must ensure the standards specified under Points a, b and c of this Paragraph and must participate in the course of training techniques of OSH or have at least 5 years working as the developer of policies, laws, management and inspection over OSH at the bodies having functions and duties directly related to the occupational safety and sanitation.		

		Training of specialized content of occupation health The trainer must have doctor degree & meet one of the following standards: a) ≥05 years working as the developer of policies, laws, management and inspection over OSH at the bodies having functions and duties directly related to the OSH b) ≥05 years working in the field related to the occupational disease, occupational sanitation, first aid and emergency, nutrition, disease prevention and food safety and sanitation. 6. On the basis of 02 years, the trainer must participate ≥ one time in the training course to update knowledge, information, policies, laws, science and technologies on OSH except for trainers of occupational sanitation, occupational health, first aid and emergency of occupational accident and diseases.		
Occupational accident and disease				
2	Article 144-BLLĐ: Responsibility of employer with employee met occupational accidents/ disease	+ To bear the part of the costs which must be jointly paid and costs which are not covered by health insurance for employees who have health insurance; + To pay all medical expenses incurred from first aid and emergency aid until stable treatment for employees who do not have health insurance.	- Currently, there is no limitation for medical cost which enterprise must pay. Enterprise can't control other items which not paid by medical insurance. So, enterprise must be responsible for drug expense, expensive health service which is not necessary arised by employee's option Meanwhile, enterprise already paid for medical insurance and compulsory insurance for occupational accident and diseases to prevent from arising risks but still have to pay for all medical expenses. That means, enterprise must pay two times for one risk. - Currently, there is not regulation on "stable treatment". That means, no limitation on time for paying medical expenses of enterprise Employer does not have responsibility for almost traffic accident considered as labor accident. Labor insurance should cover the force measure. Futermore,government must strengthen compulsory automobile liability insurance to cover traffic accident.	- Employer is responsible for share the payment for items in medical insurance for employees who have health insurance and make payment for all expenses which is regulated on list is paid by insurance agency for employees who do not have health insurance . - Regulate clearly how is "stable treatment"
5	Article 35, Law on OSH: Investigation into occupational accidents	+ Clause 6: Time limit for investigation into occupational accidents counting from the date on which the report on the occupational accident is received to the date on which the report on occupational accident investigation is published is as follows: a) 04 days if the accident only causes minor injuries to employees b) 07 days if the accident causes major injuries to one employee. + Clause 5: If the accident happened while the employee commutes between home and work, the competent authority shall provide one of the following documents to the investigation group: - Record of scene examination and Scene outline - Report on traffic accident investigation If there is no document prescribed above, a written confirmation issued by the police authority of the commune, ward or town where the accident occurred is required at the request of	+ In case a traffic accident is considered as an occupational accident (i.e. accident happened while the employee commutes between home and work), that time limit is too short for the employer to investigate the accident and submit the report because: - such accident can happen in a very wide range and it takes time for the employer to reach the scene to ensure the scene is kept intact for investigation; - employers themselves do not have sufficient expertise in this field. + It's clearly stipulated in clause 5 of this Article that: If the accident happened while the employee commutes between home and work, the Record of scene examination and Scene outline, or the Report on traffic accident investigation shall be provided by the competent authority at the request of the employee or their relatives.	In case a traffic accident is considered as an occupational accident, time limit for investigation into occupational accidents counting from the date on which the Report on traffic accident investigation is received from the competent authority at the request of the employee or their relatives to the date on which the Report on occupational accident investigation is published is as follows: a) 07 days if the accident only causes minor injuries to employees b) 10 days if the accident causes major injuries to one employee.

6	Article 16, Decree 39/2016/ND-CP: Dossier of occupational accidents	Employers must prepare dossier of occupational accident including the following documents: a) Record of scene examination (if any); b) Scene outline; c) Photos of scene and victim; d) Record of autopsy or injury examination, except for missing case as declared by the Court; dd) Record of technical inspection, forensic examination and conclusion of judicial expertise (if any); e) Record of testimony of the victim, the person who knows the facts or person concerned; g) Report on occupational accident investigation; h) Minutes of meeting to announce the Record of occupational accident investigation; i) Certificate of injury (if any); k) Certificate of discharge (if any).	+ In case a traffic accident is considered as an occupational accident, it is very difficult for the employer to have the following documents: - Record of scene examination; - Scene outline; - Photos of scene and Photos of victim at the scene. They should be provided by the police authority at the request of the employee or their relatives (as prescribed in Clause 5 of Article 35 of the Law on OSH). + It's unreasonable that the employer is responsible for getting the following documents: - Record of autopsy or injury examination; - Record of technical inspection, forensic examination and conclusion of judicial expertise; - Certificate of injury; - Certificate of discharge. They should be provided by the medical facility which has treated the victim's injury at the request of the employee or their relatives.	In case a traffic accident is considered as an occupational accident: + The victim or their relatives must get the following documents from relevant competent authority: - Record of scene examination (if any); - Scene outline; - Report on traffic accident investigation; - Record of autopsy or injury examination; - Record of technical inspection, forensic examination and conclusion of judicial expertise (if any); - Certificate of injury (if any); - Certificate of discharge (if any). + Employer shall: - prepare the Report on occupational accident investigation after receiving and basing on the Report on traffic accident investigation provided by the competent authority; - prepare the Minutes of meeting to announce the Report on occupational accident investigation; - submit the dossier of occupational accident to the authority after receiving the documents prepared by the victim or their relatives as mentioned above.
7	Art 40 OSH Law: Regime for employee getting occupational accident	Exempted cases which employee is not eligible for taking occupational accident regime paid by employer	-A lot of accidents caused by entirely intentional fault of the employee who does not comply with labor regulations (the employee) or subjective reasons , such as a fight, scuffle, the employee 's own illness (such as epilepsy) ... and not related to work, working conditions or environment . - The accident occurred purely by majeure and businesses can not control or reduce risk. --> considering as occupational accident enterprise shall pay many unreasonable cost - There are many cases where the employee was compensated by the third party (not the employer) for losses incurred, payment of medical expenses and then Enterprises continue to pay for the same medical expenses -->, is not necessary Employer does not have responsibility for almost traffic accident considered as labor accident. Labor insurance should cover the force measure. Futermore,government must strengthen compulsory automobile liability insurance to cover traffic accident.	Adding exempted cases occurred during labor is not considered as occupational accidents + The accident occurred due to willful misconduct of the employee, the employee's own illness does not arise due to working conditions. + The accident occurred due to the fault of the third party (fights, incidents, traffic accidents caused by third-party mistakes ...) + Where the party at fault has taken responsibility for compensation, medical expenses paid to employees then businesses do not have to make this payment again. The compensation amount should be recorded in writing, for they must spend getting traffic accident investigation reports on traffic accidents.
8	Art 4 Decree 37/2016/ND-CP Level of complulsory insurance payment for occupational accident and disease	Art. 4: The complulsory insurance payment for occupational accidents & diseases shall be 1%	- the equal rate 1%(revised into 0.5% in 2017) for all manufacturing and business line is unreasonable, because the risk of occupational accidents in some industries hard, toxic damage is very high, and vice versa for light labor Specifically, in Japan, the paid rate for hazardous, dangerous industries up to 8.8%, however, the labor sector has lower risk of occupational accidents such as electrical appliance manufacturer only pay 0.3%. Moreover, the Law on OSH has recognized the specific regime, responsibility for heavy, hazardous and dangerous industry, comparing to other sectors. àEqual rate for any type of industry is unreasonable	The complulsory insurance payment should be based on toxicity, heavy, dangerous of type of industry